

Court No. - 39

Case :- WRIT - C No. - 30100 of 2024

Petitioner :- Yashpal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Abhijit Mishra,Raj Kumari Tiwari

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Paras Nath Rai

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Donadi Ramesh,J.

Sri Paras Nath Rai, learned counsel for the respondent has supplied copy of the instructions to the counsel for the petitioner.

Learned counsel for the petitioner prays for and is granted time to file objection.

Put up as fresh in the next rotation.

Order Date :- 10.9.2024

P Kesari

(Donadi Ramesh, J.)

(S.D. Singh, J.)

Court No. - 40

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Counsel for Petitioner :- Abhijit Mishra,Raj Kumari Tiwari

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Paras Nath Rai

Hon'ble Shekhar B. Saraf,J.

Hon'ble Vipin Chandra Dixit,J.

1. Heard learned counsel appearing on behalf of the petitioner and Sri P.N. Rai, learned counsel appearing on behalf of the respondent no.3.
2. This is a writ petition under Article 226 of the Constitution of India wherein the petitioner is aggrieved by the order dated 29.4.2023 by which the electric connection of the petitioner was permanently disconnected.
3. Learned counsel appearing on behalf of the petitioner submits that by virtue of the one time settlement scheme that has come out, payments have been made by the petitioner subsequent to the permanent disconnection. He accordingly prays that electric connection be granted to him.
4. Per contra, learned counsel appearing on behalf of respondent no.3 submits that they have no objection in granting the electric connection to the petitioner subject to payment by the petitioner for the new electric connection i.e. required to be installed subsequent to the permanent disconnection as per Section 4.39 of the Uttar Pradesh Electricity Supply Code, 2005.
5. Upon consideration of the facts and circumstances, we are of the view that since the permanent disconnection has been made by the respondents prior to one time settlement, the petitioner is required to make payment to the authorities for the new connection as he is praying for. The petitioner is directed to make payment of the charges for new connection. In the event, the petitioner makes the payment within six weeks from date, the authorities are directed to provide new connection to the petitioner within two weeks from the date of making all payments for new connection and compliance of all the formalities by the petitioner.
6. With the above direction the writ petition is disposed of.

Order Date :- 6.12.2024

Kpy

(Vipin Chandra Dixit, J.) (Shekhar B. Saraf, J.)